

adjudged that the vendee was entitled to a lien upon the property for the purchase money paid. (See, also, 2 Sugden on Vendors [672].) The doctrine is also stated as follows: "If the contract fails, or is avoided, because of the inability or refusal of the vendor to make a proper title, or because of fraud or misrepresentation in the contract, or for any other reason chargeable to the vendor and which is not due to the default of the vendee, he is given a lien upon the land as security for the repayment of what he has paid in performance of the contract." (29 Am. & Eng. Ency. of Law, 730; 39 Cyc. 2032.) The italics are ours. "The lien also exists to secure the vendee any amount to which he is entitled for having erected improvements upon the land." (29 Am. & Eng. Ency. of Law, 730; 39 Cyc. 2037.) It also extends to expenditures for taxes and insurance. (2 Black on Rescission, sec. 694.)

To the extent this motion seeks rescission of that agreement, and/or to quiet title for the subject property such that Plaintiff's prior executed and recorded conveyance deed is rescinded, a specific accounting, not provided by the motion, would be required to establish what net amount Defendant paid during the time after the parties entered into the 2016 agreement, that would have to be returned to Defendant as a condition of completing rescission of that 2016 agreement.

Likewise, to the extent Plaintiff's complaint sought damages rather than rescission/reinstatement of Plaintiff's claim to title, an accounting of rents and other payments incurred by both parties after the 2016 agreement was entered would be necessary, and was not provided with this motion.

The court therefore denies this motion in its entirety.

McGHEE v. FCA US LLC, ET AL.
Case No. CU25-05615

Demurrer; Motion to Strike

TENTATIVE RULING

Demurrer

Defendant FCA US, LLC's demurrer to Plaintiff's first amended complaint is sustained without leave to amend.

Plaintiff's first four causes of action are barred pursuant to Code of Civil Procedure section 871.21(b). Plaintiff alleged that the vehicle was purchased on October 30, 2017, almost eight years prior to the filing of the action on June 17, 2025. (FAC, ¶¶ 7, 9.) All of these causes of action seek restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2 or Section 1794 of the Civil Code or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code. (Code

Civ. Proc. § 871.20(a).) Plaintiff has not alleged any period of tolling expressly permitted by section 871.21(c). And, unlike statutes of limitations, statutes of repose are generally not subject to any other forms of statutory or equitable tolling. (*PGA W. Residential Ass'n, Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 178.) It does not appear reasonably possible for Plaintiff to cure this defect by amendment.

Plaintiff has not demonstrated any unconstitutionality in applying the statute of repose to his case. Section 871.21 was signed by the Governor on September 29, 2024 and became effective on January 1, 2025. To the extent that Plaintiff claims that the law immediately imposed a statute of repose that cut off a remedy he was already entitled to, he had three months to file an action before the law could take effect. Plaintiff makes no showing that the three months was not a reasonable time to avail himself of his remedy before the statute took effect. (*Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 123.)

Plaintiff's sixth cause of action for fraudulent inducement is barred by the statute of limitations. When a complaint shows, on its face, that a cause of action would be barred without the benefit of the delayed discovery rule, the plaintiff "must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence." (*McKelvey v. Boeing North American, Inc.* (1999) 74 Cal.App.4th 151, 160.) Additionally, any facts supporting fraudulent concealment, equitable tolling, or estoppel must be specifically pleaded. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) Plaintiff alleged that Defendant concealed or failed to disclose that the vehicle was equipped with a defective engine prior to the sale of the vehicle on October 30, 2017. (FAC, ¶¶ 7, 94.) Consequently, absent delayed discovery or some other exception or period of tolling, the statute of limitations had run by October 30, 2020. (Code Civ. Proc. § 338(d).) Plaintiff has not adequately pleaded facts establishing the time and manner of discovery and his inability to make earlier discovery despite reasonable diligence. Plaintiff has also failed to sufficiently plead facts supporting the various theories of tolling.

Plaintiff has not met his burden of showing "in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

Motion to Strike

The motion to strike is denied as moot.

JAMAL CALVIN SANDIDGE, et al. v. MICHAEL DEAN BURLEIGH, et al.
Case No. CU26-00145

Motion to Set Aside and Vacate Dismissal of Plaintiff Takora Tazaneek Willform Pursuant to California Code of Civil Procedure 473(B)